decide the petition made to the President. In fact, between 2006 and 2008, the then home minister deliberately instructed the Government of Delhi to delay responding to the Afzal Guru file sent to it. In 2008 Afzal Guru made a statement that revealed his mental distress. He said in an interview, ‘I really wish L.K. Advani becomes India’s next PM as he is the only one who can take a decision and hang me. At least my pain and daily suffering will ease then.’

When the terrorist Ajmal Kasab was executed on 21 November 2012, immediately following the Supreme Court’s verdict on him, the Opposition again renewed its demand for Afzal Guru’s execution. Steps were then taken by the government to prevent the Opposition from exploiting the situation. Kasab’s execution carried out in secrecy became the model for the execution of Afzal Guru. On 15 November 2012 President Pranab Mukherjee sent Afzal Guru’s file back to the home ministry for a fresh consideration of the mercy petition. On 23 January 2013 the home ministry recommended its rejection and on 3 February 2013 the President formally rejected the petition. The President’s rejection was then implemented by the home minister on 4 February 2013 and five days later, in the early morning of 9 February 2013, Afzal Guru was hanged.

In executing Afzal Guru after a prolonged period in which he and his family suffered the agony of suspense, the government flouted a well-settled law laid down by the Supreme Court in several cases. In Edigma Anama vs. State of A.P. in 1974, Justice Krishna Iyer spoke of the ‘brooding horror of haunting the prisoner in the condemned cell for years’. Justice Chinnappa Reddy in T.V. Vatheeswaran vs. State of Tamil Nadu in 1983 said that a prolonged delay in the execution of a sentence of death had a dehumanizing effect and this had the constitutional implication of depriving a person of his life in an unjust, unfair and unreasonable way so as to offend the Fundamental Right under Article 21 of the Constitution. He quoted the Privy Council’s observation in a case of inordinate delay in execution: ‘The anguish of alternating hope and despair, the agony of uncertainty and the consequences of such suffering on the mental, emotional and physical integrity and health of the individual has to be seen.’

Trauma of Convict and Family